State of West Virginia

Certificate

As Secretary of State of the State of West Virginia, I hereby certify that

Amended and Restated Articles of Organization of

COOLFONT MOUNTAINSIDE ASSOCIATION, INC.

are filed in my office as required by the provisions of the West Virginia Code and are found to conform to law. Therefore, I issue this

AMENDED AND RESTATED ARTICLES OF ORGANIZATION

Given under my hand and the Great Seal of the State of West Virginia on this day of

November 29, 2021

Mac Warner

Secretary of State

WEST VIRGINIA
ARTICLES OF INCORPORATION
NON-PROFIT AMENDMENT
Form CD-3
Rev. 11/2017

FILE ONE ORIGINAL
(Two if you want a filed stamped copy returned to you.)
FILING FEE: $25.00

FILED
NOV 29 2021
IN THE OFFICE OF
WV SECRETARY OF STATE

West Virginia Secretary of State
Business & Licensing Division
Tel: (304)558-8000
Fax: (304)558-8381
Website: www.wvsos.gov

1. **The name of the corporation** is: Coolfont Mountainside Association, Inc

2. **The date of the adoption of the amendment(s):** September 25, 2021

3. In the manner prescribed by the WV Code §31E-10-1005, **the members/board of directors have adopted the following amendment(s)** to the Articles of Incorporation:

☐ Statement required by the IRS to be included in Articles of Incorporation, Restatement or Amendment for 501(c)(3) status approval (attached)

☐ Change of name to: _____

☒ Other (*attach amendments to this application*)

4. **Check and complete the applicable statement:**

☒ At a meeting held on September 25,2021 a quorum of the members entitled to vote on the amendment were present and the amendment was adopted by a majority of members present.

☐ The amendment was adopted by consent in writing signed by all members entitled to vote on the amendment.

☐ No members were entitled to vote on the amendment. At a meeting held on _____ amendment was adopted by a majority of the directors in office.

5. **Contact name and number** of person to reach in case of problem with filing: (Optional, however, listing one may help to avoid a return or rejection of filing if there appears to be a problem with the document.)

Name: Susan Betts Phone: 703-216-6068

Business e-mail address, if any: coolfont.board@gmail.com

6. **Signature of one of the officers or chairman of the board of directors of the corporation** (See below ***Important Legal Notice Regarding Signature***):

Susan A Betts — Secretary — 11/28/2021

Signature — **Title** (ex: President, Chairman, etc.) — **Date**

Important Legal Notice Regarding Signature: Per **West Virginia Code §31D-1-129. Penalty for signing false document.** Any person who signs a document he or she knows is false in any material respect and knows that the document is to be delivered to the secretary of state for filing is guilty of a misdemeanor and, upon conviction thereof, shall be fined not more than one thousand dollars or confined in the county or regional jail not more than one year, or both.

Important Note: This form is a public document. Please **do NOT provide any personal identifiable information on this form** such as social security number, bank account numbers, credit card numbers, tax identification or driver's license numbers.

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NOV 29 2021

IN THE OFFICE OF
WV SECRETARY OF STATE

AMENDMENT AND RESTATEMENT OF ARTICLES OF INCORPORATION

The name of the corporation is "Coolfont Mountainside Association, Inc."

1. Pursuant to West Virginia Code Sections 31E-10-1003, 31B-10-1006, Coolfont Mountainside Association, Inc., a West Virginia nonprofit corporation, adopts and files the following Amendment and Restatement of the Articles of Incorporation.
2. This Restatement contains amendments to the Articles of Incorporation requiring member approval. There is one class of members. This Amendment and Restatement of the Articles of Incorporation was adopted by the members on September 25, 2021. The total number of votes cast for the Amendment and Restatement was 84 and against the Amendment and Restatement was 4, and said vote was sufficient for approval of the Amendment and Restatement:

I. The undersigned agree to become a corporation by the name of

COOLFONT MOUNTAINSIDE ASSOCIATION, INC.

II. The mailing address of the principal Office or Place of Business of said Corporation will be located at 1411 Recreation Way in the town of Berkeley Springs in county of Morgan and the State of West Virginia 25411. The email address of the Corporation is coolfont.board@gmail.com.

III. The objects for which this Corporation is formed are as follows:

The Corporation does not contemplate pecuniary gain or profit, direct or indirect, to its members. The purposes for which it is formed are:

To promote the health, safety, and welfare of each Owner of any Lot situated upon the Properties (as those capitalized terms are defined in the Declaration of Covenants and Restrictions of record in the Office of the Clerk of the County Commission of Morgan County, West Virginia in Deed Book 217, at page 666, and any valid amendments or supplements thereto (the "Declaration"), and for this purpose to:

a) Own, acquire, build, operate, and maintain recreation parks, playgrounds, swimming pools, golf courses, commons, streets, footways, including buildings, structures, personal properties incident thereto, hereinafter referred to as "the common properties and facilities;"

b) Provide, if appropriate, exterior maintenance for the lots and homes within The Properties;

c) Provide, if appropriate, garbage and trash collection;

d) Provide, if appropriate, fire and police protection;

e) Maintain unkept lands or trees;

f) Supplemental municipal services;

g) Fix assessments, special assessments, fines, and other such costs to be levied against The Properties;

h) Enforce any and all covenants, restrictions, and agreements applicable to The Properties;

i) Pay taxes, if any, on the common properties and facilities; and

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BY: .....

j) Insofar as permitted by law to do any other thing that, in the opinion of the Board of Directors, will promote the common benefit and enjoyment of the Owners and members of The Properties.

The membership of the Corporation, and all rights thereof, shall be determined in accordance with the Bylaws for the Corporation, and the Declaration.

The affairs of the Corporation shall be managed by a board of directors as stipulated in the Association's Bylaws who must be members of the corporation.

Additions to the Properties may be made only in accordance with the provisions of the Declaration. Such additions, when properly made under the Declaration, shall extend the jurisdiction, functions, duties, and membership of this Corporation to such properties. Where the Declaration requires that certain additions be approved by this Corporation, such approval must have the assent of two-thirds of the votes of the members who are voting in person or by proxy at a meeting duly called for this purpose, written notice of which shall be provided to all members at least thirty (30) days in advance and shall set forth the purpose of the meeting.

The Corporation shall have power to dispose of its real properties only as authorized under the Declaration.

The Corporation may be dissolved only with the assent given in writing and signed by the members entitled to cast two-thirds of the votes. Written notice of a proposal to dissolve, setting forth the reason therefor and the disposition to be made of the assets shall be provided to every member at least ninety (90) days in advance of any action taken. Upon dissolution of the Corporation, the assets, both real and personal of the Corporation, shall be dedicated to an appropriate public agency of the State of West Virginia to be devoted to purposes as nearly as practicable the same as those to which they were required to be devoted by the Corporation. In the event that such dedication is refused acceptance, such assets shall be granted, conveyed and assigned to any nonprofit corporation, association, trust, or other organization to be devoted to purposes as nearly as practicable the same as those to which they were required to devote by the Corporation. No such disposition of this Corporation's properties shall be effective to divest or diminish any right or title of any member vested in him under the Declaration unless made in accordance with the provisions of such Declaration.

IV. This is a non-profit, non-stock corporation. The Corporation may not have or issue shares of stock or make distributions. The Corporation will have members entitled to vote. There shall be one class of members. Membership is limited to those persons who own a Lot within the Properties.

V. The full names and the city, town or village, of the incorporators, is.

NAME	ADDRESS	No. of Shares Common Stock	No. of Shares Preferred Stock	Total No. Of Shares
S.F. Ashelman	Coolfont, Berkeley Springs, W. Va.	----------	----------	----------
Margaret P. Ashelman	Coolfont, Berkeley Springs, W. Va.			
Rosalyn Capen	Berkeley Springs, W. Va			
Alden Capen	Berkeley Springs, W. Va			
Jerry W. France	Berkeley Springs, W. Va			

VI. The existence of this corporation is to be perpetual.

THE UNDERSIGNED, for the purpose of Amending and Restating the Articles of Incorporation of the Corporation under the laws of the State of West Virginia do make and file this Amendment and Restatement of the Articles of Incorporation; and has accordingly executed the same this 25th day of September 2021.

COOLFONT MOUNTAINSIDE ASSOCIATION, INC.

By: Jason Geno

Its: President of the Board

West Virginia Secretary of State
Business & Licensing Division
Tel: (304)558-8000
Fax: (304)558-8381
Website: www.wvsos.gov

Rev. 9/2018

Customer Order Request

SUBMIT THIS COMPLETED FORM WITH YOUR FILING.

STOP **READ CAREFULLY BEFORE SUBMITTING - Expedite service is NOT AVAILABLE for the following filings:**
>> **Tax Department filings including Sole Proprietorships, General Partnerships, and Associations**
>> **Dissolution or Withdrawal of Corporation, Voluntary Association or Business Trust**

Order Processing Requested*: *** **Expedite Processing Requires Additional Fees** ***

☒ Standard Processing**
(Avg. processing turnaround 5-10 business days)
Email to: CorpFilings@wvsos.gov

☐ 24-HOUR Expedite*** (additional $25.00 fee included)
☐ 2-HOUR Expedite (additional $250.00 fee included)
☐ 1-HOUR Expedite (additional $500.00 fee included)
Email to: eFilings@wvsos.gov

*"Processing" indicates the filing will be completed and registered in the Secretary of State registration database.
**Standard Processing applications received by E-MAIL or FAX must include the e-Payment Authorization form with credit card information.
***NOTE: Orders filed in person through any Secretary of State office location requesting the filing be processed will be assessed a 24-HOUR Expedite fee of $25.00 per order.

Name of Entity: Coolfont Mountainside Association, Inc.

Return filing to: PO Box 418, Berkeley Springs, WV 25411
(Return Address)

Contact Name: Susan Betts Phone: 7032166068

Return Delivery Options: Email or Fax options do not receive a copy via mail; must be ordered separately.

☒ Email to: coolfont.board@gmail.com ☐ Fax to: _____

☐ Hold for Pick Up ☐ Mail to Return Address above ☐ FedEx: Acct # _____

☐ Other (explain below): ☐ UPS: Acct # _____

Order Description (include items being ordered and fee breakdown):

Amendment to Articles of Incorporation filing

* **PLEASE NOTE:** Original paperwork is kept by this office. Include a copy of the original filing if you want a file stamped copy returned to you at no extra charge. Certified copy requests are an additional $15 per certified copy being requested.

Total Amount: 25.-

Payment Method:

☐ **Check/Money Order**
☐ **Cash** (*Do Not mail cash*)
☒ **Credit Card** (*Must attach* e-Payment Authorization *request form including payment information.*)
☐ **Pre-paid Acct #:** _____ **Attach signed pre-paid slip.**